

omitted.)

This is especially true here when the sham pleading doctrine is in play.

Plaintiff's contention that the earlier demurrer "was sustained not on the merits but because the prior opposition was procedurally deficient," is inaccurate. While the Court did highlight the procedural problems with Plaintiff's opposition to the demurrer, the Court did substantively rule on it. As noted in the ruling, the "State's demurrer is sustained for the reasons set forth therein." The Court emphasized that since that was "the first time the Court has addressed the issues raised in the State's demurrer, it will grant Plaintiff leave to amend to address them."

Plaintiff was given an opportunity to address the problems pointed out by the State. Plaintiff did so by changing the factual allegations regarding the type of facility that Lions Gate is without explanation for the change. As Plaintiff has had an opportunity to amend and has failed to meet its burden to show how it can amend again to allege a valid claim against the State, leave to amend is denied.

### **Conclusion**

Here, as in *Owens v. Kings Supermarket*, no explanation for the pleading inconsistency has been offered. "A court has inherent power by summary means to prevent an abuse of its process and peremptorily to dispose of sham causes of action." (*Amid v. Hawthorne Cmty. Medical Group* (1989) 212 Cal.App.3d 1383, 1390-91.) The State's motion for judgment on the pleadings is **granted without leave to amend**.

## **Discovery Law & Motion**

22. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

\*HEARING ON MOTION FOR DISCOVERY ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

**\*TENTATIVE RULING:\***

### **Summary**

Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joinder and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** in part as moot, and **reserved** as set forth herein.

### **Background**

This is a wrongful death action where Plaintiff Lynetta Westbrook, individually, and as heir and successor-in-interest to Alex Pollard, deceased, seeks causes of action for violation of the Elder and Dependent Adult Civil Protection Act (Welfare & Institutions Code § 15600, et. Seq), for Negligence, and for Wrongful Death. Plaintiff claims that Defendant, which operates the skilled nursing facility

located at 13328 San Pablo Ave., San Pablo, California, did not provide for basic needs of Alex Pollard, and withheld services and supervision necessary to provide his basic needs. Mr. Pollard died after contracting the COVID 19 virus. This matter was stayed, pending removal to Federal Court, which was denied. On June 9, 2022, the U.S. District Court for the Northern District remanded this case to this court. On July 6, 2022, Plaintiff sought an appeal to the 9<sup>th</sup> Circuit Court of Appeals. The 9<sup>th</sup> Circuit denied Plaintiff's appeal and confirmed the District Court's remand orders. .

During this procedural activity, Defendant pursued several discovery motions against Plaintiff, most of which were granted. Now, Defendant also seeks terminating sanctions in the form of dismissal due to Plaintiff's years-long discovery misconduct, including failure to respond to discovery, and providing evasive responses.

On November 17, 2025, Defendant filed this instant Motion to Abate or alternatively to compel Joinder and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff. The Motion is supported by Notice, Declaration of Valerie Kraml, Request for Judicial Notice, Memorandum of Points and Authorities, and a proposed order.

The relief sought by Defendant includes: (1) Order of Abatement pursuant to Cal. Code of Civ. Proc. § 377.60. as there appears to be omitted heirs who are necessary parties to this wrongful death action. If the action is not abated, Defendant seeks an order to compel joinder of omitted heirs under Cal. Code of Civ. Proc. § 389(a) and requests continuance of the trial date. (2) Defendants also moves for issue, monetary or terminating sanctions pursuant to Cal. Code of Civ. Proc. §§ 2030.030 and 2023.030; and (3) for monetary sanctions in the amount of \$5,422.95 in attorney's fees and costs for bringing this motion.

On March 9, 2026, Plaintiff, though her counsel, Dawn M. Smith, filed an opposition to this Motion. Plaintiff asserts that there are no indispensable parties, as they have already been joined to the case. Specifically, Angel and Emerald Pollard, who have been substituted in for Does 51 and 52, were recently made part of this action as nominal defendants. (Proof of service demonstrates that these new defendants were served on March 10, 2026, several months after Defendant filed this motion.) Thus, this action does not need to be abated. Moreover, Plaintiff claims that terminating sanctions are not appropriate as Plaintiff has already provided verified discovery responses, and has submitted to deposition.

On March 11, 2026, Defendant submitted a reply brief acknowledging that the Motion to Compel joinder would no longer be needed because Angel and Emerald Pollard were served with summons and compliant, which they acknowledged with Notices of Acknowledgement and Receipt dated March 10, 2026. Defendant continues to seek sanctions in the amount of \$5,350, as well as issue and/or terminating sanctions.

The Court **grants** Defendant's request for judicial notice as unopposed.

### **Analyses**

The issue joinder of compulsory parties is **moot**. However, the Court notes that the parties recently joined were served just ten (10) days before the hearing of this motion.

The Court focuses its attention on Defendant's Motion for Issue, Terminating and/or Monetary

Sanctions. Provisions of the Discovery Act applicable to each of the discovery methods provide discretionary authority to the Court to impose issue sanctions, evidentiary sanctions, or terminating sanctions for violation of a discovery order. A judge may not grant such relief unless a party disobeys an order compelling discovery.

#### Terminating Sanctions

Cal. Code of Civ. Proc. § 2023.030(d) provides for terminating sanctions, which include striking pleadings, in part or in whole, staying further proceedings by a party until it disobeys a discovery order, dismissing the action or part of it, and rendering a default judgment. Terminating sanctions are severe because of the drastic effect of their application. They must be used sparingly, and must be supported by an affirmative showing that the party who was ordered to comply with the discovery request had disobeyed the order. Such party must be given an opportunity to be heard regarding their disobedience. *J.W. v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2018) 59 Cal.App.5<sup>th</sup> 1142, 1166-1171; Cal. Code of Civ. Proc. §§ 2023.030(d), 2030.300(e), etc. Moreover, terminating sanctions are appropriate only when a party’s failure to obey a court order prejudiced the opposing party. *Moofly Prods., LLC v. Favila* (2020) 46 Cal.App.5<sup>th</sup> 1, 11.

The Court is not convinced that terminating sanctions are appropriate here, given Plaintiff’s representations that she has served verified responses to the outstanding discovery requests. As such, the element of willful failure to obey this Court’s orders is not met.

#### Issue Sanctions

An issue sanction, as defined in Cal. Code of Civ. Proc. § 2023.030(b) is an order that prohibits a party from supporting or opposing designated claims or defenses. An evidence sanction under Section 2023.030(c) prohibits a party “from introducing designated matters in evidence” To impose such sanctions, the Court must find that there is a (1) failure to comply with a discovery obligation, and (2) the failure must be willful. *Valencia v. Mendoza* (2024) 103 Cal.App.5<sup>th</sup> 427, 447.

Applied here, Defendant seeks issue sanctions in the form of precluding Plaintiff from presenting at trial any evidence not previously disclosed in discovery responses as follows: Defendant is entitled to issue sanctions in the form of precluding Plaintiff from presenting at trial any evidence not previously disclosed in discovery responses, namely: special interrogatories (set one) and (set two); request for admissions (set one) and (set two); request for admissions of genuineness of documents (set one); request for production (set one) and (set two); form interrogatories (set one) (set two) and (set three); and supplemental interrogatory (set one). Such broad characterization provides the Court with little information about what evidence was not provided by Plaintiffs which Defendant now specifically seeks to exclude from trial, which has not been set.

While Defendant’s Counsel, Valerie Kraml, attaches, in her 115 page Declaration, the discovery which Defendant served, and the responses provided by Plaintiff, she does not articulate which specific discovery responses have and not been provided, and does not summarize what interrogatories, production of documents, or admissions were deficient, which requires exclusion from evidence. This Court does not possess the resource of time to sift through over one hundred pages of discovery requests and responses to discern which discovery responses are deficient, and which evidence must be precluded. It is the responsibility of the moving party, not the Court, to provide the Court with

specific and detailed information supporting its claim that issues should be precluded as a result of the deficient discovery responses. The Court is disappointed that Counsel fails to do that. The Court is aware of the discovery orders that the Court issued in response to the motions recently heard by this Court, and takes judicial notice of those orders.

As such, at this juncture, the Court is not prepared to impose an issue sanction. Accordingly, the Court makes the following orders.

#### **Ruling**

1. Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joinder against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** as moot.
2. Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Terminating Sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied**.
3. The Court will **reserve** on ruling on Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Issue sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). Instead, Counsel for the Parties are ordered to:

(a) Conduct a comprehensive meet and confer session either in person or remotely of such length sufficient to review each discovery request and each discovery response that are purportedly the subject of this Motion and which Defendant believes are not sufficient. Such conference shall not be cursory and should consist of significant and meaningful efforts by Counsel to address all items of outstanding discovery including a serious discussion as to why the information being sought is relevant and calculated to lead to the discovery of admissible evidence that will be of critical importance to this case; this conference shall contemplate the goal of resolving all discovery issues and should include an agreement whereby Plaintiff shall file supplemental responses that satisfy any outstanding issues within a reasonable time.

(b) Prepare a joint statement, signed by both Counsel, providing a status report to the Court communicating the results of the above "meet and confer" session, including a statement that summarizes each of outstanding discovery issues that have not been resolved, the specific and immediate plans to resolve the discovery issues and any outstanding issues which require resolution by the Court; this joint statement should provide the Court with sufficient information to make a decision whether to preclude the subject evidence from being introduced at trial. For the issues jointly resolved, the joint statement shall include proposed orders submitted to the Court that contains a stipulation resolving those issues, including an agreement to provide verified supplemental responses within a time certain;

(c) This joint statement shall be e-filed with the Court no later than May 1, 2026;

(d) The Court reserves the option to refer the resolution of this matter, and all future discovery disputes, to a Discovery Referee.

(e) The Court **continues** this Motion, *sua sponte*, on the reserved issues only to Wednesday, May 20, 2026 at 9:00 a.m.

4. Defendant's request for monetary sanction is **reserved**.